

Court No. - 2

Case :- WRIT - C No. - 3949 of 2025

Petitioner :- Arun Gupta

Respondent :- State Of U.P. Thru. Prin. Secy. Deptt. Of Energy
U.P. Civil Sectt. Lko And Others

Counsel for Petitioner :- Ramakar Shukla

Counsel for Respondent :- C.S.C.,Aprajita Bansal

Hon'ble Rajan Roy,J.

Hon'ble Om Prakash Shukla,J.

1. Heard.

2. Let the opposite parties get an inspection of the premises conducted to ascertain as to whether the petitioner is in possession thereof or not.

3. List after three weeks, as fresh.

[Om Prakash Shukla, J.] [Rajan Roy, J.]

Order Date :- 25.4.2025

Santosh/-

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Respondent :- State Of U.P. Thru. Prin. Secy. Deptt. Of Energy
U.P. Civil Sectt. Lko And Others

Counsel for Petitioner :- Ramakar Shukla

Counsel for Respondent :- C.S.C.,Aprajita Bansal

Hon'ble Rajan Roy,J.

Hon'ble Om Prakash Shukla,J.

1. Considering the order proposed to be passed, issuance of notice to private opposite parties is dispensed with.

2. Heard.

3. On 25.04.2025, we had passed the following order:

"1. Heard.

2. Let the opposite parties get an inspection of the premises conducted to ascertain as to whether the petitioner is in possession thereof or not.

3. List after three weeks, as fresh."

4. Today, Ms. Shreya Pahwa, learned Advocate holding brief of Ms. Aprajita Bansal, lerned counsel for the Electricity Corporation says that on inspection it was found that the petitioner was in possession of part of the premises in question, however, difficulty in granting electricity connection to the petitioner is on account of two factors; firstly, there are electricity dues on the premises in question, secondly, there is a family dispute between the occupants.

5. As regards the first hurdle, counsel for the petitioner says that the petitioner will clear the dues. As regards the second hurdle, the petitioner is agreeable to submit an indemnity bond on the principles contained in para 4.4 of the U.P. Electricity Supply Code, 2005.

6. In view of the aforesaid, if the petitioner takes the aforesaid two actions and there is no other legal impediment, then, the application of the petitioner for grant of electricity connection shall be considered and appropriate action shall be taken within three weeks of its submissions. We make it clear that if electricity

connection is to be granted, it shall be a prepaid connection so as to avoid any further dispute.

7. It is, however, made clear that this order by itself will not entitle the petitioner to the possession of the premises in question nor to any title or right in respect thereof nor would it affect the rights, if any, of the private opposite parties herein or any third party nor any proceedings which may be pending in respect of the premises in question. We further make it clear that if there is any injunction against the petitioner in respect of the premises in question, then, no benefit can be extended to the petitioner on the basis of our order.

8. This order is being passed only on the principles enunciated in the judgment of this Court in ***Seema Mansoor vs. U.P. Power Corporation Ltd.; 2014 (6) ADJ 672***, and the judgment of Hon'ble the Supreme Court in the case reported in ***(2011) 12 SCC 314, Sri Chandu Khamaru v. Nayan Malik & ors.*** although therein the dispute was between the landlord and tenant whereas in this case there is a family dispute between the occupants of the premises, as, ultimately a person cannot live without electricity in today's scenario.

9. The writ petition is ***disposed of*** in the aforesaid terms.

[Om Prakash Shukla, J.] [Rajan Roy, J.]

Order Date :- 19.5.2025

Santosh/-